
Journal

2015 SD 90

Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

2014-05-06

Appeal No.

CRIMINAL REVISION NO. 3 OF 20. 14

Judge

MR. JUSTICE MOHAMMAD AZAM KHAN CJ.MR. JUSTICE CH. MUHAMMAD IBRAHIM ZIA

Parties

NISH AD KHAN (PETITIONER) VERSUS THE STATE AND ANOTHER (RESPONDENTS)

Lawyers

HUMAYUN NAWAZ KHAN FOR PETITIONER. MANSOOR PERVAIZ KHAN, ADVOCATE GENERAL FOR STATE.. SARDAR M. SULEMAN KHAN FOR COMPLAINANT.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 497(1) IBID - S. 497(1) INJUNCTION OF HOLY QURAN--

Judgment

JUDGMENT ' ' CH. MUHAMMAD IBRAHIM ZIA, J.-The instant revision petition has arisen out of the order of the Shariat Court dated 30.1.2014, whereby the revision petition filed by the petitioner and another was partly accepted. Petitioner No. 2 therein, Shafqat Anwer was allowed the concession of bail whereas the petitioner herein was refused the same.

2. The summary of facts giving rise to this revision Mohammad Azam Khan, CJ. (SC.AJK) petition is that Muhammad Shafique, complainant, lodged a report at Police Station Thorar on 26.8.2010 alleging therein that at 7:30 p.m., the accused-persons, Zaffar Mahmood s/o Muhammad Aziz, Safdar Mahmood s/o Zaffar Mahmood Khan, 'Nishad s/o Raj Khan, Imtiaz s/o Resham Khan, Shaukat alias Bhutto and Nazakat Hussain sons of Mirzaman Khan r/o Nar, Nishad Ahmed s/o Muhammad Khan r/o Tain-Bandi, Muhammad Asif s/o Muhammad Naseem r/o Tain-Nar, armed with lethal weapons, Kalashnikovs, having common intention entered into the house of his brother-in-law Muhammad Hanif s/o Muhammad Akbar Khan. Accused, Saqib was also accompanying them. Zaffar Mahmood, accused, fired gun shots upon Muhammad Hanif with the intention to kill him. Nishad, accused, fired with Kalashnikov, upon Mst. Ulfat Begum w/o Muhammad Hanif. Safdar, accused, fired at Mst. Mehnaz Khatoon d/o Muhammad Hanif, whereas Imtiaz, accused, fired shots upon Ehtisham s/o Ikram. All the victims died on the spot. Thereafter, all the accused-persons entered into the house of Muhammad Ashraf (late) s/o Muhammad Akber, Nisar Ahmed, accused, fired shots' at Mst. Jannat Begum with the intention to kill her, who died on the spot, whereas Muhammad Asif, accused, fired at Mst. Shakeela d/o Muhammad Ashraf, who also sustained injuries. Besides that, all the accused-persons fired at Rasheed s/o Abbass, with the intention to kill him, who escaped himself by fleeing away. The accused persons committed this incident with the consultation and abetment of Muhammad Sadiq Khan s/o Muhammad Akber Khan r/o Nar, Muhammad Anwar s/o Mitha Khan Caste Sudhan r/o Nar, Mst. Tazeem d/o Raj Khan, Mst. Lai Jan w/o Raj Khan r/o Tain Kakra. The occurrence was witnessed by Yameen, Rasheed, Mst. Farzana and Mst. Shakeela. Beside them, many other people of the village also saw the accused-persons fleeing away while armed, with weapons. The accused-persons, after the occurrence, went towards Sonkakra and also fired shots upon the house of Lai Khan s/o Mir Akber Khan. The accused-persons, with the help of Nadeem, s/o Guldad Khan and Muhammad Riaz s/o ' Gulshad Khan r/o Tain, fled away while firing. The motive behind the occurrence has been stated to be previous enmity between the victims and the accused-persons.

3. On - this report, a case for commission of the offences under sections 302, 324, 458, 147, 148, 149, 109 and 34, APC was registered against the accused persons. Accused, Nishad Khan and Shafqat Anwar, applied for grant of bail on statutory ground of delay in trial, - before the Additional District Court of Criminal Jurisdiction, Rawalakot on 27.8.2012 and 5.9.2012 respectively, whereby the concession of bail was refused through consolidated order dated 29.11.2012. They filed revision petition before the Shariat Court against the said order. The Shariat Court allowed the bail to the extent of Shafqat Anwar and disallowed the same to the extent of Nishad Khan, accused-petitioner, herein through - 1 the impugned order, hence, this revision petition has been brought before this Court.

4. ' Mr, Hamayun Nawaz Khan, Advocate, the learned counsel for the petitioner, after narration of necessary facts, focused on one point that according to the, prosecution story, only a single shot is attributed to the accused-petitioner. No other overt act is attributed to him. Merely on the basis of single fire, in absence of any previous criminal record or conviction, one cannot be declared as hardened, desperate and dangerous criminal, the Courts below fell in error of law, therefore, the impugned judgment is not sustainable. He further submitted that this Court has in number of

cases observed that attribution of single fire is not sufficient for declaring a person as hardened, desperate and dangerous criminal. He referred to an unreported judgment of this Court in the case titled *Irfan v. The State* (criminal appeal No. 7/2013, decided on 24.9.2013) and *Farzana Imtiaz v. Tariq Hussain* (criminal appeal No. 51/2012, decided on 19.7.2013). He further submitted that so far as the reason for refusal of concession of bail to the accused petitioner by the Trial Court is concerned, it is also not a valid ground. The Trial Court attributed that the delay has been caused due to revision filed by another accused *Safdar Mehmood*. According to the celebrated principle of law, for the act of any other person no one can be penalized. In support of his contentions, he has placed reliance upon the cases reported as *Muhammad Siddique v. Muhammad Behram* and another [1998 SCR 146] and *Moundar and others v. The State* [PLD 1990 SC 934].

5; Conversely, Ch. Shoukat Aziz, the learned Additional Advocate-General seriously opposed the appeal on the ground that the manner of commission of offence is very callous which speaks of desperate and dangerous mentality of the accused. The accused-petitioner along with others has no regard or respect for law and the system. The accused, with preplanning committed lurking house trespass, firstly murdered a family and thereafter repeated the same offence in *Mohammad Azam Khan*, C.J. (S.U.AJK.) the next house and committed murder. According to nature of the offence, if such like persons are not deemed to be hardened, desperate and dangerous, then no other can be hardened and dangerous criminal. The Courts below have rightly passed the order according to the spirit of law which does not suffer from any infirmity. This petition has no merits, hence, the same is liable to be dismissed. In support of his version, he has placed reliance upon the cases reported as *Muhammad Aziz v. The State* [2000 SCR 1] and *Dilawar Khan v. The State* [1998 P.Cr.L.J. 18] 6. *Sardar Muhammad Suleman Khan*, Advocate, the learned counsel for the complainant submitted written arguments and mostly relied upon the principle of law laid down in an unreported judgment of this Court in the case titled *Irfan & another v. State and another* (criminal appeal No. 7/2013, decided on 24.9.2013). He also referred to the case reported as *Muhammad Riaz v. The State* [2002 SCMR 184], *Wajid Hussain v. The State* [2013 MLD 698] and submitted that this appeal has no merits, hence, the same be dismissed. / 7. We have considered the arguments of the learned counsel for the parties and also examined the record made available along with the judgments of the Courts below. The accused-petitioner has approached the Court for his release on bail on the ground of delay of two years, in conclusion of trial. Under the statutory provisions, a person can be released on bail if the Trial Court has not concluded the trial even after lapse of 2 years in a murder case and delay has been occasioned due to the accused. There is also exception in this *Mohammad Azam Khan*, C.J. (S.C. AJK) regard that the concession is not available to the accused, who is a hardened, desperate and dangerous criminal. For determination of the role of an accused-person whether he is hardened, desperate and dangerous criminal, the Courts have to consider the role attributed to the accused.

8. In this case, the prosecution story speaks that the accused-petitioner along with the co-accused, due to enmity, for taking revenge, with pre-planning, after sunset, armed with the deadly weapons entered into the house of *Muhammad Hanif*. They murdered *Muhammad Hanif*, his wife, daughter and *Ehtisham*. Then all the accused entered into the house of *Muhammad Ashraf*.

The accused petitioner fired at *Janat Begum* who died on the spot. The other accused *Muhammad Asif* injured *Shakila* the daughter of *Muhammad Ashraf*. In this first episode, the accused-petitioner is attributed the role of firing with *Kalashnikov* upon *Mst. Ulfat Begum* due to which she died on the spot. Whereas in the second episode, he fired at *Mst Janat Begum* due to which she succumbed to the injuries. Thus, the role attributed to the accused-petitioner is very much vital. He has not only committed the murder in first episode but also repeated his

dangerous, desperate and hardened criminal intention in the second house.

9. This Court has in this regard, while dealing with the term "Dangerous" in the case titled *Jehanzaib v. State & another* (criminal appeal No; 48/2012) has observed as follows:- .

"8. We have made a tentative assessment of the material collected by the Investigating Agency. Any detailed or deep expression of opinion at this stage Mohammad Azam Khan, CJ. (SC.AJK) is not deemed appropriate as it may adversely affect the ultimate decision of the case.

However, for determination of the legal status of the accused-appellant that as to whether he falls within the definition of hardened, desperate and dangerous criminal, in our opinion in this case, except the narrated story of incident, no other material has been brought on record by the prosecution to satisfy the Court for making opinion in this regard. No doubt, even without previous conviction, the accused can be treated as hardened and desperate criminal while keeping in consideration the manner of commission of offence. In the present case, as it has already been observed that except a single fire shot, there is no other attribution against the accused-appellant. The Courts have in some cases formed the opinion relating to the accused being hardened, desperate and dangerous criminal where the accused's manner of commission of offence was extraordinary,- brutal and highly conspired with preplanning but in absence of these factors, the Courts normally have fawned to form opinion to declare the accused as hardened and desperate criminal...' Same like in the case reported as *Naeem Akram Khan v. Mumtaz Ahmed and another* [2002 SCR 409], this Court while dealing with the proposition for making opinion to bring the accused as dangerous criminal has taken into consideration some extraordinary factors. Relevant portion of the judgment reads as follows:-.

"6. So far as the contention of the learned counsel for the appellant that the accused-respondent has master minded conspiracy to put the life of Ishtiaq Akram, deceased, to an end is concerned, prima facie, the recovery of the pistol, belongings of the deceased from him and his conduct of filing a report at police chowki Kohala after the incident clearly shows that if at all he is a 'criminal', he is not an 'ordinary criminal' but a 'dangerous criminal' within the meanings of proviso to section 497, Cr.P.C.

According to the prosecution story, despite the alleged illicit relations of the deceased with the wife of the accused-respondent, he kept friendship with the deceased and at the long last he killed him by hiring the services of the co-accused. When the dead-body of the deceased was found from river Jhelum, at Dhangali, the legs of the dead-body were found tied with a rope and firearm injuries were found on the person of deceased. The alleged recoveries of pistol and the belongings of the deceased from the accused-respondent also, prima facie, connect him with the commission of the offence with which he has been charged. It may also be pointed out that the learned Judge in the Shariat Court did not consider these aspects of the matter and simply mentioned in the impugned judgment that in the circumstances of the case the accused-respondent was entitled to bail; the learned Judge in the Shariat Court did not rebut the conclusion arrived at by the Trial Court that the accused-appellant was 'dangerous criminal' within the meanings of the relevant proviso. It may be further observed here that whether the accused person is 'hardened', 'desperate' or 'dangerous' - criminal or not, is to be ascertained from the circumstances of a particular case, material placed on the record, manner in which the offence was committed and the motive to commit the offence. A reference may be made to an un-reported case titled *Muhammad Aziz v. The State* (criminal appeal No.

. 2 of 1998, decided on 15.5.1998), wherein it was held as under:- .

'5. We are of the opinion that the question as to whether an accused is hardened, desperate or

dangerous criminal within the meaning of the. aforesaid proviso is to be seen in the light of the circumstances of each case, i.e., (i) the motive for murder, (ii) the part which each of the. accused played in the completion of. the offence, (iii) prima facie .evidence in support of the incriminating act attributed to the accused persons, and (iv) the . effects of the act of the accused on the family of victims and on the society at large.” In another latest judgment of this Court in the case titled Subedar Muhammad' Azam v. Imran Hussain & another (criminal appeal No. 48/2011, decided on 21.12.2013), while dealing with the identical proposition, it has been observed as Mohammad Azam Khan, CJ. (SC. AJK) “9. The manner of occurrence is also an important factor to declare any person hardened, desperate and dangerous criminal. In a recent judgment titled Jahanzeb v. Stale and. others (criminal appeal No. 48 of 2012) this Court has also relied on a judgment from Pakistan jurisdiction titled Jalal v. Allahyar & another [1993 SCMR 522] wherein it was observed that the manner of commission of offence is very much necessary to be considered while declaring an accused as hardened, desperate and dangerous criminal. In view of the principle laid down in the supra judgment it can safely be said that the case of the accused- respondents does, not fall under the terms hardened and desperate. However, as we have observed earlier that the term ‘dangerous criminal’ is quite different and in view of the meanings referred to above, the case of the accused respondents can securely bring in the purview of dangerous criminal. As according to the definition referred to above the person who create a sense of insecurity, panic and unrest in the society can be called a dangerous criminal. From the’ criminal history of the accused it appears that they were not previously convicted, therefore, it cannot be said that their case does not cover in the terms hardened, desperate and dangerous criminal.” Therefore, we do not feel any hesitation in observing that according to the above-discussed role attributed to the Mohammad Azam Khan, CJ. (SC.AJK) accused-petitioner, he falls within the definition of desperate, hardened and dangerous criminal.

10. The case-law referred to by the counsel for the appellant, due to distinguishable legal and factual proposition has no application in the light of the peculiar facts and circumstances of this case. Hence, we fully agree with the arguments advanced by Ch. Shoukat Aziz, the learned Additional Advocate-General for the State. The case-law referred to and relied upon by him is fully applicable to the case in hand especially the case reported as Muhammad Aziz v. The State [2000 SCR 1].

11. So far as the other contention of learned counsel for the petitioner that delay occurred due to filing, of revision petition by co-accused Safdar Mehmood, cannot be attributed to the petitioner is concerned, there is no cavil with this proposition.

According to the injunctions of Holy Qur'an, @jj/ ijJ3 no one can be penalized for the act of others without any connection or attribution in the alleged act. However, as we have otherwise drawn the conclusion that the petitioner is a hardened, desperate and dangerous criminal, hence, is not entitled to concession of bail, therefore, any farther deliberation on this point merely will become an academic discussion, the same is avoided. .

Therefore, for the detailed discussed reasons, this petition stands dismissed. Revision Petition Dismissed.

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